

THE NATIONAL FORENSIC SCIENCES UNIVERSITY ACT, 2020

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THE NATIONAL FORENSIC SCIENCES UNIVERSITY ACT, 2020

UNION OF INDIA

India

THE NATIONAL FORENSIC SCIENCES UNIVERSITY ACT, 2020

Act 32 of 2020

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Not commenced

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THE NATIONAL FORENSIC SCIENCES UNIVERSITY ACT, 2020

ACT NO. 32 OF 2020

[28th September, 2020.]

An Act to establish and declare an institution to be known as the National Forensic Sciences University as an institution of national importance to facilitate and promote studies and research and to achieve excellence in the field of forensic science in conjunction with applied behavioural science studies, law, criminology and other allied areas and technology and other related fields, and to provide for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Seventy-first Year of the Republic of India as follows:?

Legal Desire highlighted the Salient features of

National Forensic Sciences University Act, 2020

passed by Loksabha.

Chapter I

PRELIMINARY

1.

Short title and commencement.?

(1)

This Act may be called the National Forensic Sciences University Act, 2020.

(2)

It shall come into force on such date¹ as the Central Government may, by notification in the Official Gazette, appoint, and different dates may be appointed for different provisions of this Act.

2.

Declaration of National Forensic Sciences University as an institution of national importance.?

Whereas the objects of the National Forensic Sciences University are such as to make it an institution of national importance, it is hereby declared that the National University of Forensic Sciences is an institution of national importance.

3.

Definitions.?

In this Act, unless the context otherwise requires,?

(a)

?Academic Council? means the Academic Council of the University referred to in section 18;

(b)

?academic staff? means teachers and such categories of staff as are designated to be academic staff by the Statutes;

(c)

?affiliated college? means an institution recognised as such by the Board of Governors in accordance with the provisions of this Act and the Statutes made thereunder;

(d)

?Board of Governors? means the Board of Governors of the University referred to in section 15;

(e)

?campus? means the campus of the Gujarat Forensic Sciences University situated at Gandhinagar, Gujarat, and that of the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences situated at Rohini, New Delhi, or such other campus as may be established by the University at any place within India or outside India;

(f)

?Chancellor? means the Chancellor of the University;

(g)

?college? means a college or institution maintained or admitted to the privileges of the University for imparting education and training in forensic sciences or its related disciplines;

(h)

?Court? means the Court of the University referred to in section 14;

(i)

?Dean?, in relation to any School campus, means the Dean of such School campus;

(j)

?department? means an academic department of the University;

(k)

?distance education system? means the system of imparting education through any means of communication such as broadcasting, telecasting, internet, correspondence courses, seminars, contact programmes or the combination of any two or more such means;

(l)

?employee? means any person appointed by the University and includes teachers, other academic and non-academic staff of the University;

(m)

?Executive Registrar? means the Executive Registrar of the University referred to in section 25;

(n)

?Finance Committee? means the Finance Committee of the University referred to in section 28;

(o)

?Fund? means the Fund of University referred to in section 35;

(p)

?notification? means a notification published in the Official Gazette;

(q)

?School? means a school of study of the University;

(r)

?Statutes? and ?Ordinances? mean, respectively, the Statutes and Ordinances of the University made under this Act;

(s)

?student? means a student of the University and its affiliated colleges, and includes any person who has enrolled for pursuing any course of study in the University;

(t)

?teachers? means Directors, Deans, professors, associate professors, assistant professors and such other persons as may be appointed for imparting instruction or conducting research or for giving guidance for research or rendering assistance to students, in the University or in any college or institution maintained by the University;

(u)

?University? means the National Forensic Sciences University established under this Act;

(v)

?Vice-Chancellor? means the Vice-Chancellor of the University referred to in section 21.

Chapter II

ESTABLISHMENT OF UNIVERSITY

4.

Establishment and incorporation of University.?

(1)

The Gujarat Forensic Sciences University, Gandhinagar, Gujarat established under the Gujarat Forensic Sciences University Act, 2008 (Gujrat Act 17 of 2018), and the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi shall be established as an University by the name of National Forensic Sciences University.

(2)

The National Forensic Sciences University shall be a body corporate having perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire, hold and dispose of property and to contract, and shall, by the said name, sue or be sued.

(3)

The headquarters of the University shall be at Gandhinagar, Gujarat.

(4)

The campuses of the University shall include the campuses situated at Gujarat Forensic Sciences University, Gandhinagar, Gujarat and the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi and such other campuses as the Central Government may, by notification, specify.

(5)

The first Chancellor, Vice-Chancellor, Board of Governors, Academic Council, Directors, Deans, Executive Registrar and all other persons who may hereafter become such officers or members, so long as they continue to hold such office or membership, shall constitute the University.

5.

Effect of incorporation of University.?

On and from the commencement of this Act,?

(a)

any reference to the Gujarat Forensic Sciences University, Gandhinagar, Gujarat or the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi in any other law for the time being in force or in any contract or other instrument, shall be deemed as a reference to the University;

(b)

all appointments made, orders issued, degrees and other academic distinctions conferred, diplomas and certificates

awarded, privileges granted or other things done under the provisions of the Gujarat Forensic Sciences University Act, 2008, in so far as it relates to the Gujarat Forensic Sciences University, Gandhinagar, shall be deemed to have been, respectively, made, issued, conferred, awarded, granted or done under the corresponding provisions of this Act, and, except as otherwise provided by or under this Act or the Statutes or Ordinances or regulations, continue in force unless and until they are superseded by the Statutes or Ordinances made under this Act;

(c)

the status of "Centre of Excellence" and "Institute of Strategic or Security related Interest" granted to the Gujarat Forensic Sciences University, Gandhinagar by the Government of Gujarat and the status of "Center of Excellence for Narcotics Drugs and Psychotropic Substances" conferred by the Ministry of Home Affairs, Government of India, to the Gujarat Forensic Sciences University, Gandhinagar, shall be applicable to the University;

(d)

all properties, movable and immovable, of or belonging to the Gujarat Forensic Sciences University, Gandhinagar, Gujarat or the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi shall vest in the University;

(e)

all rights, debts and other liabilities of the Gujarat Forensic Sciences University, Gandhinagar, Gujarat or the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi shall be transferred to and be the rights, debts and liabilities of the University;

(f)

every person employed by the Gujarat Forensic Sciences University, Gandhinagar, Gujarat or the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi, immediately before such commencement, shall hold his office or service in the University by the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension, leave, gratuity, provident fund, and other matters as he would have held if this Act had not been passed, and shall continue to do so unless and until his employment is terminated or until such tenure, remuneration and terms and conditions are duly altered by the Statutes, not detrimental to the service conditions of such employee:

Provided that any reference, by whatever form of words, to the Registrar and other officers of the Gujarat Forensic Sciences University, Gandhinagar, Gujarat or the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi, in any law for the time being in force, or in any instrument or other document, shall be deemed to be reference to the Executive Registrar and other officers of the University;

(g)

any activity for appointment or promotion of academic or non-academic staff underway in the Gujarat Forensic Sciences University, Gandhinagar at the time of commencement of this Act shall be deemed to be valid, and further proceeding in such appointment or promotion shall be taken in accordance with the provisions of this Act and be continued from the stage at the time of commencement of this Act;

(h)

every person pursuing, before the commencement of this Act, any academic or research course or programmes of study in the Gujarat Forensic Sciences University, Gandhinagar, shall be deemed to have migrated and registered with the University, on such commencement, at the same level of course or programme and shall continue to pursue such academic or research course and programmes of study in the University;

(i)

every person pursuing, before the commencement of this Act, any academic or research course in the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi, shall continue to pursue their academic courses and programmes of study under the enrolment and affiliation of the Guru Gobind Singh Indraprastha University, Delhi which shall conduct examinations and award degrees to them upon successful completion of such courses and programmes of study;

(j)

all suits and other legal proceedings instituted or which could have been instituted by or against the Gujarat Forensic Sciences University, Gandhinagar or the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi, immediately before the commencement of this Act, shall be continued or instituted by or against the University.

6.

Objects of University. ?

The objects of the University shall be?

(i)

to facilitate and promote academic learning and practices in the field of forensic science in conjunction with applied behavioural science studies, law, legal studies, criminology and other allied areas and technology, including training, skill-development, research and extension of work with focus on emerging areas in the said fields for strengthening criminal justice institutions in the country;

(ii)

to foster research and applied applications in forensic science, applied behavioural science studies, law, legal studies and other allied areas and technology for training, research and development by promoting innovations and best practices;

(iii)

to promote and provide advanced institutional and research facilities in the fields of forensic science, applied behavioural science, law, legal studies and other allied areas and technology;

(iv)

to create capacities and capabilities of global standards of education, training and research for development of aptitude, skills and knowledge within and outside the country at various levels in the fields of forensic science, applied behavioural science, law, legal studies and other allied areas and technology;

(v)

to coordinate with the Central Government and State Governments to improve investigation, crime detection and prevention through projects and research, funded by grants-in-aid from the Central Government and State Governments, in fields of forensic science, applied behavioural science, law, legal studies, criminology and other allied areas and technology;

(vi)

to advice and assist the Central Government, State Governments and Union territory Administrations in formulation of relevant policies including their review in the fields of forensic science, applied behavioural science, law, legal studies, criminology and other allied areas and technology;

(vii)

to coordinate and network with the institutions having specialisation so as to expand the fields of forensic science, applied behavioural science, law, legal studies, criminology and other allied areas and technology, for promoting academics and research work through various pursuits;

(viii)

to administer, maintain and manage the University and to establish such off-site campus and off-shore centres for education, training and research as are necessary for the furtherance of the objects of the University within and outside the country;

(ix)

to assist the Central Government or State Governments to accredit forensic science laboratories, provide standard operating procedures, and lay down specifications for forensic equipment and kits to be used for forensic work in the country;

(x)

to set-up campus, colleges, schools, centres and institutions of excellence for imparting State of-the-art education, training and research in the fields of forensic science, cyber security and digital forensics, behavioural science, technology and management;

(xi)

to assist the Central Government to create and maintain national forensic data base required for criminal investigation, including fingerprints, voice, Deoxyribonucleic Acid (DNA), firearms, counterfeit currency, narcotic drugs and psychotropic substances, cyber security, cyber defence and internal security;

(xii)

to undertake special projects for Central Government and State Governments; and

(xiii)

to undertake any other objects, not inconsistent with the provisions of this Act which the Central Government may, by notification, specify in this behalf.

7.

Powers and functions of University.?

(1)

Subject to the provisions of this Act, the University shall exercise the following powers and perform the following functions, namely:?

(a)

to provide for studies, training, skill-development, research and extension of work in forensic science, applied behavioural science, law, legal studies, criminology and other allied areas and technology with focus on emerging areas of forensic science studies and related technologies;

(b)

to establish and maintain campuses, colleges, institutions, schools, departments, laboratories, libraries, centres of research, training, skill-development, research and specialised studies within and outside the country;

(c)

to plan and prescribe courses of study or skill-development, such as degrees, diplomas, and certificates;

(d)

to hold examinations and grant degrees, diplomas, certificates and other academic distinctions;

(e)

to confer honorary degrees or other distinctions;

(f)

to grant, subject to such conditions as the University may determine, diplomas or certificates to, of evaluation or any other method of testing, and to withdraw any such diplomas, certificates, degrees or other academic distinction for good and sufficient cause;

(g)

to provide facilities through the distance education system to such persons as it may determine;

(h)

to introduce semester system, continuous evaluation and choice-based credit system and enter into agreements with other Universities and academic institutions for credit transfer and joint degree programmes;

(i)

to make provisions for research and advisory services and for that purpose to enter into such arrangements with other institutions or bodies, national or international, as the University may deem necessary;

(j)

to receive grants-in-aid to undertake projects for research and special assignments for the Central Government and State Governments;

(k)

to determine, specify and receive payment of fees and other charges as the University may deem fit, from students and any other person, institution or body corporate for instruction and other services, including training, consultancy and advisory services, provided by the University;

(l)

to establish, maintain and manage University buildings, halls, hostels and other campuses for the University in any other place;

(m)

to affiliate colleges and institutions of higher learning for such purposes as the University may determine and to withdraw such recognition;

(n)

to supervise and control the residence and regulate the discipline of students of the University and to make arrangements for promoting their health, general welfare, cultural and corporate life;

(o)

to create academic and other teaching posts and to make appointments thereto (except the posts of Chancellor and Vice-Chancellor) as may be necessary for imparting instruction and managing the affairs of the University;

- (p)
to appoint on contract or otherwise visiting professors, emeritus professors, consultants, scholars including those located outside the country, and such other persons who may contribute to the advancement of the University;
- (q)
to create non-teaching, administrative, ministerial and other posts in the University and to make appointment thereto;
- (r)
to cooperate, collaborate or partner or associate with educational or other institutions and organisations, public and private, including those located outside the country having objects wholly or partly similar to those of the University by exchange of teachers and scholars and generally in such manner as may be conducive to their common objects;
- (s)
to institute and award fellowships, scholarships, exhibitions, prizes and medals;
- (t)
to provide for the preparation of instructional material including related software and other audio-visual aids;
- (u)
to sponsor and make provision for research and development in areas of core competence of the University;
- (v)
to enter into, carry out, vary or cancel contracts;
- (w)
to demand and receive such fees and other charges as may be specified by Ordinances;
- (x)
to receive benefactions, donations and gifts from persons and to name after them such chairs, institutions, buildings and the like, as the University may determine, whose gift and donations to the University is worth such as the University may decide;
- (y)
to acquire, hold, manage and dispose of any property, movable or immovable, including trust and endowment properties for the purposes of the University;
- (z)
to initiate measures to enlist the cooperation of the industry to provide complementary facilities;
- (za)
to establish off-shore campus at any place outside the country as and when it is considered necessary for advancing the aims and objectives of the University;
- (zb)
to provide for printing, reproduction and publication of research and other work;
- (zc)
to provide, control and maintain discipline among the students and all categories of employees and to lay down the conditions of service of such employees, including their code of conduct;
- (zd)
to conduct innovative experiments and develop new methods and technologies in the field of science, technology and management in relation to the domains of investigation, prevention and detection of crimes and furthering the cause of criminal justice systems in order to achieve international standards of such education, training research and consultancy;
- (ze)
to admit students for courses in Institute and its affiliated centres and institutes on an all India basis in such manner as may be laid down in the Statutes;
- (zf)
to admit foreign students, Overseas Citizen of India card holder, Person of Indian Origin, non-resident Indian, children of Indian workers in Gulf and South-East Asian Countries, in such manner and as may be laid down in the Statutes;
- (zg)
to purchase or to take on lease any land or building or works which may be necessary or convenient for the purpose of the University on such terms and conditions as it may think fit and proper and to construct, alter and maintain any such buildings or works;

(zh)

to raise and borrow moneys on bonds, mortgages, promissory notes or other obligations or securities founded or based upon all or any of the properties and assets of the University or without any securities and upon such terms and conditions as it may think fit and to pay out of the funds of the University, all expenses incidental to the raising of moneys, to repay and redeem any money borrowed after taking prior permission of the Board of Governors;

(zi)

to invest the funds of the University in or upon such securities and transpose any investment from time to time in such manner as it may deem fit in the interest of University; and

(zj)

to do all such things as may be necessary, incidental or conducive to the attainment of all or any of the objects of the University.

(2)

Notwithstanding anything contained in sub-section (1), the University shall not dispose of in any manner any immovable property without the prior approval of the Central Government.

8.

Jurisdiction of University.?

The jurisdiction of the University shall extend to the whole of India.

9.

University to be open to all races, creeds and classes.?

(1)

The University shall be open to all persons irrespective of gender, race, caste, creed, disability, domicile, ethnicity, social or economic background.

(2)

No bequest, donation or transfer of any property shall be accepted by the University which in the opinion of the Board of Governors involves conditions or obligations opposed to the spirit and object of this section.

(3)

Admissions to every academic programme of study in the University shall be based on merit assessed through transparent and reasonable criteria disclosed prior to the commencement of the process of admission by the University: Provided that the University shall be a Central Educational Institution for the purposes of the Central Educational Institutions (Reservation in Admission) Act, 2006 (

5 of 2007

).

10.

Admission of students.?

(1)

It shall be the endeavor of the University to maintain an all-India character, and high standards of teaching and research.

(2)

Admission of students for courses in University shall be made on an all-India basis in such manner as may be specified in the Ordinances.

11.

Teaching at University.?

All teaching at the University and its campuses or affiliated colleges shall be conducted by and in the name of the University in accordance with the Statutes and Ordinances made in this behalf.

Chapter III

AUTHORITIES OF UNIVERSITY

12.

Authorities of University.?

The following shall be the authorities of the University, namely:?

(a)

Chancellor;

(b)

Court;

(c)

Board of Governors;

(d)

Academic Council;

(e)

Board for Affiliation and Recognition;

(f)

Finance Committee; and

(g)

such other authorities as may laid down in the Statutes to be the authorities of the University.

13.

Chancellor.?

(1)

The Central Government may, by notification, appoint a person of eminence as the Chancellor of the University in consultation with such State Governments as it deems fit.

(2)

The Chancellor shall, by virtue of his office, be the Head of the University and shall preside at the convocations of the University held for conferring degrees.

(3)

The Chancellor may invite any person or persons of eminence to advise the University in relation to the affairs of the University as and when necessary.

(4)

Notwithstanding anything contained in this Act, the Chancellor may order or undertake an inspection or inquiry, if he deems it necessary.

(5)

The Chancellor shall have such other powers as may be laid down in the Statutes

14.

Court. ?

(1)

The Central Government shall, by notification, constitute a Court for the University to be headed by the Chancellor.

(2)

The members of the Court shall be nominated by the Central Government, in consultation with such State Governments as it deems fit, from amongst persons of eminence, including from the fields of forensics, bio-technology, criminal justice, law enforcement, technology and academia.

(3)

The term of office of members of the Court shall be such as may be laid down in the Statutes.

(4)

The Vice-Chancellor shall be the convenor of the Court.

(5)

Subject to the provisions of this Act, the Court shall have the following powers and perform the following functions, namely:?

(a)

to review, from time to time, the broad policies and programmes of the University, and to suggest measures for the improvement and development of the University;

(b)

to consider and pass resolutions on the annual report and the annual accounts of the University and the audit report on such accounts; and

(c)

to perform such other functions as may be laid down in the Statutes.

(6)

The Court shall meet at least once in a year.

15.

Board of Governors.?

(1)

The Board of Governors of the University shall consist of the following members, namely:?

(a)

Vice-Chancellor?Chairperson, ex officio;

(b)

Financial Adviser, Ministry of Home Affairs, Government of India?member, ex officio;

(c)

one representative of the Ministry of Home Affairs in the Government of India not below the rank of Joint Secretary?member, ex officio;

(d)

an officer of the Home Department, not below the rank of the Secretary to the Government of Gujarat?member, ex officio;

(e)

Registrar General of the High Court of Gujarat?member, ex officio;

(f)

Director-cum-Chief Forensic Scientist, Director of Forensic Science Services, Ministry of Home Affairs, Government of India?member, ex officio;

(g)

five persons of eminence selected from the fields of forensic science, law, enforcement, criminology, computer science, engineering, technology, management, forensic medicine and pharmacy, to be nominated by the Central Government, in consultation with such State Governments as it deems fit?members;

(h)

all Campus Directors of the University?members, ex officio.

(2)

The Executive Registrar shall be the Secretary of the Board.

(3)

The Chairperson shall exercise such other powers and perform such other functions as may be assigned to him by or under this Act or the Statutes.

16.

Powers of Board of Governors.?

(1)

Subject to the provisions of this Act, the Board of Governors shall be responsible for the general superintendence, direction and the control of affairs of the University and shall exercise all the powers of the University not otherwise provided by this Act, Statutes or Ordinances and shall have the power to review the acts of the Academic Council and the Finance Committee and other committees or authorities of the University.

(i)

take decisions on question of policy relating to the administration and working of the University;

(ii)

institute courses of study in the University;

(iii)

make Statutes;

(iv)

modify or cancel Statutes;

(v)

create posts and appoint persons to academic as well as other posts in the University and determine salary structure and the terms and conditions of different cadres of employees;

(vi)

consider and pass resolutions on the annual report, annual accounts and the budget estimates of the University for

every financial year;

(vii)

invest money and funds of the University and to take decision on the recommendations of the Finance Committee;

(viii)

publish or finance the publication of studies, treaties, books, periodicals, reports and other literature from time to time and to sell or arrange for the sale as it may deem fit;

(ix)

appoint such committees as it considers necessary for the exercise of its powers and performance of its duties under this Act;

(x)

appoint Campus Directors;

(xi)

consider and approve the proposals recommended by the Board for Affiliation and Recognition;

(xii)

delegate any of its power to the Directors, Deans, Executive Registrar or any other officer, employee or to any authority of the University or to a committee appointed by it; and

(xiii)

exercise such other powers and perform such other functions as may be conferred or imposed upon it by or under this Act or the Statutes or Ordinances made thereunder for achieving the objects of the University.

(3)

The Board of Governors shall meet at least two times in a year and the presence of at least six members shall form the quorum for a meeting of the Board of Governors.

17.

Terms of office of members of Board of Governors.?

(1)

Save as otherwise provided in this section, the term of a nominated member of the Board of Governors under clause (g) of sub-section (1) of section 15 shall be three years from the date of his nomination.

(2)

A nominated member of the Board of Governors shall be eligible for re-nomination for the next term.

(3)

A nominated member of the Board of Governors may resign from his office by writing under his hand addressed to the Chairperson and his resignation shall take effect from the date it is accepted by the Chairperson.

(4)

The term of office of an ex officio member of the Board of Governors shall continue so long as he holds the office by the virtue of which he is a member.

18.

Academic Council.?

(1)

The Academic Council of the University shall consist of the following members, namely:?

(i)

Vice-Chancellor?Chairperson, ex officio;

(ii)

two academicians or professionals to be nominated by the Board of Governors ?members;

(iii)

two academicians or professionals in the field of forensic science to be nominated by the Board of Governors?members;

(iv)

Director-cum-Chief Forensic Scientist, Directorate of Forensic Science Services, Ministry of Home Affairs, Government of India?member, ex officio;

(v)

Campus Directors?members, ex officio;

(vi)

one Dean or professor or associate professor from each discipline of the School, by rotation, to be nominated by the Vice-Chancellor?members, ex officio;

(vii)

two representatives of industry or industry bodies in related sectors to be nominated by the Board of Governors?members.

(2)

The Executive Registrar shall be the Secretary of the Council.

(3)

The term of office of the members nominated under clauses (ii), (iii), (vi) and (vii) of sub-section (1) shall be three years, and the members shall be eligible for re-nomination for the next term.

19.

Powers of Academic Council.?

Subject to the provisions of this Act and the Statutes made thereunder, the Academic Council of the University shall exercise the following powers and perform following functions, namely:?

(i)

to specify the academic policies of the University and be responsible for the maintenance and improvement of standards of instruction, education and evaluation in the University;

(ii)

to consider matters of general academic interest either on its own initiative or on a reference from the faculty of the University or the Board of Governors and to take appropriate action thereof;

(iii)

to review and recommend to the Board of Governors regarding proposals received from the Board for Affiliation and Recognition;

(iv)

to make Ordinances;

(v)

to recommend to the Board of Governors, to make such Statutes as are consistent with this Act regarding the academic functioning of the Institute including discipline of students; and

(vi)

to exercise such other powers and perform such other functions as may be conferred or imposed upon it by the Statutes or Ordinances.

20.

Officers of University.?

The following shall be the officers of the University, namely:?

(a)

Vice-Chancellor;

(b)

Campus Directors;

(c)

Deans;

(d)

Executive Registrar; and

(e)

such other persons in the service of the University as may be laid down in the Statutes, to be the officers of the University.

21.

Vice-Chancellor.?

(1)

The Central Government may, in consultation with such State Governments as it deems fit, by notification, appoint the Vice-Chancellor of the University.

(2)

A person shall be qualified to be appointed as the Vice-Chancellor of the University, if he is?

- (i)
a person of eminence in the field of forensic sciences;
- (ii)
associated in administration of criminal justice, development matters, education, philanthropy, industrial or business development or exemplary administration in the central services, State services, corporations or public bodies at national and international levels.

(3)
The Vice-Chancellor shall hold office for a period of three years and shall be eligible for reappointment for another term or till he attains the age of seventy years.

(4)
The other terms and conditions of the Vice-Chancellor shall be such as may be laid down in the Statutes.

(5)
The Vice-Chancellor may resign from his office by writing under his hand addressed to the Chancellor and such a resignation shall take effect from the date of acceptance by the Chancellor.

22.

Powers of Vice Chancellor.?

(1)
The Vice-Chancellor shall have, subject to the provisions of this Act, power to cause an inspection or review to be made by such person or persons as he may direct, of the University, its buildings, hostels, libraries, equipment and systems and processes and of any institution or centre maintained by the University, and also of the examinations, teaching, research and other works conducted or done by the University and to cause an inquiry to be made in like manner in respect of any matter connected with the administration, academic affairs and finance of the University.

(2)
Without prejudice to the generality of the foregoing provisions, the Vice-Chancellor shall?

(i)
preside at the meetings of the Board of Governors, Academic Council, Board for Affiliation and Recognition and Finance Committee;

(ii)
be the principal academic and executive officer of the University and shall exercise general supervision and control over the affairs of the University and give effect to the decisions of all the authorities of the University;

(iii)
be responsible for imparting of instructions and maintenance of discipline in the University;

(iv)
submit annual reports and accounts to the Board of Governors;

(v)
ensure that decisions taken by the Board of Governors are implemented;

(vi)
have the power to delegate some of his powers to any of his subordinates under intimation to the Board of Governors;

(vii)
nominate a Director of the University to perform his functions during the period of his leave;

(viii)
have all financial powers of the Secretary to the Government of India for the purposes of rules of the Government, in so far as they are applicable or may be made applicable to the conduct of the business of the University, subject to the additional power that may be delegated by the Board of Governors from time to time;

(ix)
exercise such other powers and perform such other duties as may be assigned to him by or under this Act or the Statutes or Ordinances or as may be delegated to him by the Board of Governors.

(3)
If the post of the Vice-Chancellor remains vacant for any reason, it shall be open to the Chancellor to authorise a senior regular professor in the service of the University or any other appropriate person possessing the qualification provided

under sub-section (2) of section 21 to exercise such powers, functions and duties of the Vice-Chancellor during such vacancy.

(4)

Where any matter is of urgent nature requiring immediate action and the same cannot be immediately dealt with by the authority or body of the University empowered under this Act to deal with it, the Vice-Chancellor may take such action as he may deem fit and shall forthwith report the action so taken by him to the authority or body of the University who or which, in the ordinary course, would have dealt with the matter:

Provided that if such authority or other body is of the opinion that such action ought not to have been taken by the Vice-Chancellor, it may refer the matter to the Board of Governors which may either confirm the action taken by the Vice-Chancellor or annul the same or modify it in such manner as it thinks fit, and thereupon the action shall cease to have effect or, as the case may be, shall take effect in such modified form, and such modification or annulment shall be without prejudice to the validity of anything previously done by or under the order of the Vice-Chancellor.

(5)

Where the exercise of the power by the Vice-Chancellor under sub-section (4) involves the appointment of any person, such appointment shall be confirmed by the competent authority in the University empowered to approve such appointment in accordance with the provisions of this Act and the Statutes made thereunder, within a period of one year from the date of order of the Vice-Chancellor, otherwise such appointment shall cease to have effect on the expiration of a period of one year from the date of order of the Vice-Chancellor.

23.

Campus Directors.?

(1)

The Campus Directors of the University shall be appointed by the Vice-Chancellor with the approval of the Board of Governors in such manner and on such terms and conditions as may be laid down in the Statutes.

(2)

The Campus Directors shall assist the Vice-Chancellor in managing the academic, administrative and other affairs of the campus of University, and shall exercise such powers and perform such functions as may be laid down in the Statutes or entrusted to them by the Vice-Chancellor.

24.

Dean.?

(1)

The Deans of each School of the University shall be appointed by the Vice-Chancellor on such terms and conditions as may be laid down in the Statutes.

(2)

The Deans shall assist the Vice-Chancellor, Executive Registrar and respective Campus Directors in managing the academic and other affairs of the Schools of the University and shall exercise such powers and perform such functions as may be laid down in the Statutes or entrusted to them by the Vice-Chancellor.

25.

Executive Registrar.?

(1)

The Executive Registrar shall be appointed by the University in such manner and on such terms and conditions as may be laid down in the Statutes.

(2)

The Executive Registrar shall exercise the following powers and perform the following duties, namely:?

(i)

be responsible for the custody of records, common seal, the funds and properties of the University;

(ii)

place before the Board of Governors and other authorities of the University all such information and documents as may be necessary for transaction of its business;

(iii)

be responsible to the Vice-Chancellor for the proper discharge of his functions;

(iv)

be responsible for the administration of the University and conduct the examinations and make all other arrangements necessary thereof and be responsible for the execution of all processes connected therewith;

(v)

attest and execute all documents on behalf of the University;

(vi)

verify and sign the pleadings in all suits and other legal proceedings by or against the University and all processes in such suits and proceedings shall be issued to and served on the Executive Registrar;

(vii)

act as the Secretary of the Board of Governors, the Academic Council, the Finance Committee and such committees as may be specified by the Board of Governors; and

(viii)

exercise such other powers and perform such other duties as may be laid down in the Statutes or as may be delegated to him by the Board of Governors or the Vice-Chancellor.

26.

Finance Officer.?

The Finance Officer shall be appointed by the University in such manner, on such emoluments and on such other terms and conditions of service and shall exercise such powers and perform such duties as may be laid down in the Statutes.

27.

Other officers.?

The manner of appointment and powers and duties of other officers of the University shall be such as may be laid down in the Statutes.

28.

Finance Committee.?

(1)

The Finance Committee shall consist of the following members, namely:?

(a)

Vice-Chancellor, who shall be the Chairperson of the Committee;

(b)

two members of the Board of Governors, of which one shall be ex officio member to be nominated by the Board of Governors;

(c)

all Campus Directors;

(d)

one expert in the field of finance to be nominated by the Board of Governors;

(e)

Dean of any one School of the University, in rotation, as may be nominated by the Board of Governors.

(2)

The Executive Registrar shall be the Secretary of the Finance Committee.

(3)

The term of office of the members nominated under clauses (b), (d) and (e) shall be three years and the said members shall be eligible for renomination.

29.

Powers of Finance Committee.?

Save as otherwise provided in this Act, the Finance Committee shall exercise the following powers and perform the following functions, namely:?

(a)

to examine the annual accounts and annual budget estimates of the University and to advise the Board of Governors thereof;

(b)

to review from time to time the financial position of the University;

(c)

to make recommendations to the Board of Governors on all financial policy matters of the University;

(d)

to make recommendations to the Board of Governors on all proposals involving raising of funds, receipts and expenditure;

(e)

to provide guidelines for investment of surplus funds;

(f)

to make recommendations to the Board of Governors on all proposals involving expenditure for which no provision has been made in the budget or for which expenditure in excess of the amount provided in the budget needs to be incurred;

(g)

to examine all proposals relating to the revision of pay scales, upgradation of the pay scales and those items which are not included in the budget prior to placing before the Board of Governors; and

(h)

to exercise such other powers and perform such other functions as may be conferred or imposed upon it by this Act or the Statutes or Ordinances made thereunder.

30.

Board for Affiliation and Recognition.?

(1)

The Board for Affiliation and Recognition shall be responsible for admitting colleges and institutions to the privileges of the University.

(2)

The constitution of the Board for Affiliation and Recognition, the term of office of its members and its powers and functions shall be such as may be laid down in the Statutes.

31.

Other officers of University.?

The Board of Governors may, by Statutes, declare such other authorities or officers of the University and specify the powers, functions and duties of each such authority or officer, as the case may be.

32.

Grants by Central Government.?

For the purpose of enabling the University to discharge its functions efficiently under this Act, the Central Government may, after due appropriation made by Parliament by law in this behalf, pay to the University, in each financial year, such sums of money in such manner as it may deem fit.

33.

Grants by State Governments.?

The University may receive such sums of money as grants-in- aid annually or as one-time grant from any State Government.

Chapter IV

ACCOUNTS AND AUDIT

34.

Corpus of University.?

The University may receive funds from the Central Government or State Governments or other sources or use its funds to maintain and operate a corpus of the University.

35.

Fund.?

(1)

The University shall maintain a Fund to which shall be credited?

(a)

all moneys provided by the Central Government;

(b)

all moneys received from State Governments;

(c)

all fees and other charges received by the University;

(d)

all moneys received by the University by way of grants, gifts, donations, benefactions, bequests or transfers;

(e)

all interest from corpus, or any other such earnings;

(f)

any loans taken by the University;

(g)

the moneys received by the University from the collaborating industries in terms of the provisions of the Memorandum of Understanding entered between the University and such industry for establishment of sponsored chairs, fellowships or infrastructure facilities of the University; and

(h)

all moneys received by the University in any other manner or from any other source.

(2)

All moneys credited to the Fund of the University shall be deposited in such banks or invested in such manner as the University may, with the approval of the Finance Committee, decide.

(3)

The Fund of the University shall be applied towards the expenses of the University including expenditure incurred in the exercise of its powers and discharge of its functions by or under this Act.

36.

Accounts and audit.?

(1)

The University shall maintain proper accounts and other relevant records and prepare an annual statement of accounts including the balance-sheet, in such form and accounting standard as may be specified, by notification, by the Central Government in consultation with the Comptroller and Auditor-General of India.

(2)

The accounts of the University shall be audited by the Comptroller and Auditor-General of India and any expenditure incurred by it in connection with such audit shall be payable by it to the Comptroller and Auditor-General of India.

(3)

The Comptroller and Auditor-General of India and any person appointed by him in connection with the audit of the accounts of the University shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India has in connection with the audit of the Government accounts, and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect the offices of the University.

(4)

The accounts of the University as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf together with the audit report thereon shall be forwarded annually to the Central Government and that Government shall cause the same to be laid before each House of Parliament.

37.

Pension and provident funds.?

(1)

The University may constitute for the benefit of its employees such provident or pension fund or provide such insurance scheme as it may deem fit in such manner and subject to such conditions as may be laid down in the Statutes.

(2)

Where any provident fund has been constituted under sub-section (1), the Central Government may declare that the provisions of the Provident Funds Act, 1925 (

19 of 1925

) shall apply to such fund as if it were a Government provident fund.

Chapter V

ANNUAL REPORT AND APPOINTMENTS

38.

Annual report of University.?

(1)

The annual report of the University shall be prepared by the Vice-Chancellor, which shall include, among other matters, the steps taken by the University towards the fulfilment of its objects and an outcome based assessment of the research being undertaken by it, and be submitted to the Board of Governors on or before such date as may be specified and the Board of Governors shall consider the report in its annual meeting.

(2)

The annual report, as approved by the Board of Governors, shall be published and placed on the website of the University.

(3)

The Vice-Chancellor shall prepare and release for every year a report, in English and in Hindi, the working of the University in the previous year on or before the expiry of nine months from the close of financial year, and a copy of the same, together with an audited statement of accounts showing the income and expenditure for the previous year shall be submitted to the Central Government within that stipulated time, and the same may be caused to be laid before each House of Parliament.

39.

Appointments of officers of University.?

All appointments of the employees of the University, except the Vice-Chancellor, shall be made in accordance with the procedure laid down in the Statutes, by?

(a)

the Board of Governors, if the appointment is made on the academic staff in the post of Assistant Professor or above, or if the appointment is made on the non-academic staff in any post equivalent to Group ?A? and above, as the case may be;

(b)

by the Vice-Chancellor, in any other case.

Chapter VI

STATUTES AND ORDINANCES

40.

Statutes.?

Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:?

(a)

the constitution, powers and functions of authorities and other bodies of the University, as may be constituted from time to time;

(b)

the appointment and continuance in office of the members of the said authorities and bodies, the filling up of vacancies of members, and all other matters relating to those authorities and other bodies for which it may be necessary or desirable to provide;

(c)

the appointment, powers and duties of the officers of the University and their emoluments;

(d)

the appointment of teachers, academic staff from within the country or from outside the country, and other employees of the University, their emoluments and conditions of service;

(e)

the appointment of teachers and academic staff working in any other University or organisation for a specific period for undertaking a joint project;

(f)

the conditions of service of employees including provisions for pension, insurance, provident fund, manner of termination of service and disciplinary action;

(g)

the principles governing the seniority of service of the employees of the University;

(h)

the procedure for arbitration in cases of dispute between employees or students and the University;

(i)

the procedure for appeal to the Board of Governors by any employee or student against the action of any officer or authority of the University;

(j)

the conferment of affiliation to a college or an institution or a Department under the University;

(k)

the establishment and abolition of Schools, departments, centres, halls, colleges and institutions;

(l)

the conferment of honorary degrees;

(m)

the withdrawal of degrees, diplomas, certificates and other academic distinctions;

(n)

the management of campuses and affiliated colleges by the University;

(o)

the delegation of powers vested in the authorities or officers of the University;

(p)

the maintenance of discipline among the employees and students; and

(q)

any other matter, which by this Act are to be, or may be, laid down in the Statutes.

41.

Statutes how to be made.?

(1)

The first Statutes of the University shall be made by the Board of Governors with the prior approval of the Central Government and a copy of the same shall be laid as soon as may be it is made, before each House of Parliament:

Provided that till such Statutes are made, the provisions of existing regulations of the Gujarat Forensic Sciences University, Gandhinagar shall continue to be applicable:

Provided further that till the Statutes for the administrative functioning of Delhi campus of the University is made, the functions in Delhi campus shall continue in the same manner presently being followed by the Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi.

(2)

The Board of Governors may, from time to time, make new or additional Statutes or may amend or repeal the Statutes referred to in sub-section (1):

Provided that the Board of Governors shall not make, amend or repeal any Statutes affecting the status, powers or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on the proposed changes, and any opinion so expressed shall be considered by the Board of Governors.

(3)

Notwithstanding anything contained in this section, the Central Government may direct the University to make provisions in the Statutes in respect of any matter as it may specify.

(4)

The power to make Statutes shall include the power to give retrospective effect from a date not earlier than the date of commencement of this Act, to the Statutes or any of them, but no retrospective effect shall be given to any Statute so as to prejudicially affect the interests of any person to whom such Statute may be applicable.

42.

Ordinances.?

Subject to the provisions of this Act and the Statutes, the Ordinances may provide for all or any of the following matters, namely:?

(a)

the admission of students to the University and their enrolment as such;

(b)

the courses of study to be laid down for all degrees, diplomas and certificates of the University;

- (c)
the medium of instruction and examination;
- (d)
the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;
- (e)
the fees to be charged for courses of study in the University and for admission to examinations, degrees and diplomas to the University;
- (f)
the conditions and institution for award of fellowships, scholarships, studentships, medals and prizes;
- (g)
the conduct of examination including the term of office and manner of appointment and the duties of examining bodies, examiners and moderators;
- (h)
the conditions of residence of the students of the University;
- (i)
the special arrangements, if any, which may be made for the residence and teaching of women students and the specifying of special courses of studies for them;
- (j)
the establishment of centres of studies, boards of studies, specialised laboratories and other committees;
- (k)
the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;
- (l)
the setting up of machinery for redressal of grievances of employees and students; and
- (m)
any other matter which by this Act or Statutes, is to be, or may be, specified in the Ordinances.

43.

Ordinances how made.?

- (1)
Save as otherwise provided in this section, Ordinances shall be made by the Academic Council.

(2)
All Ordinances made by the Academic Council shall have effect from such date as it may direct, but every Ordinance so made shall be submitted, as soon as may be, to the Board of Governors and shall be considered by the Board of Governors at its next succeeding meeting.

- (3)
The Board of Governors shall have power by resolution to approve, modify or cancel any such Ordinance and such Ordinance shall from the date of such resolution stand modified accordingly or cancelled, as the case may be.

Chapter VII

TRIBUNAL OF ARBITRATION

44.

Tribunal of Arbitration.?

- (1)
Every employee of the University shall be appointed under a written contract, which shall be retained by the University and a copy of which shall be given to the employee concerned.

(2)
Any dispute arising out of the contract between the University and any employee shall, at the request of the employee, be referred to a Tribunal of Arbitration consisting of one member appointed by the Board of Governor, one member nominated by the employee concerned and chaired by an umpire appointed by the Central Government.

- (3)
The decision of the Tribunal of Arbitration shall be final and no suit shall lie in any civil court in respect of the matters

decided by the said Tribunal:

Provided that nothing in this sub-section shall preclude the employee from availing of the judicial remedies available under articles 32 and 226 of the Constitution.

(4)

Every request made by the employee under sub-section (2) shall be deemed to be a submission to arbitration upon the terms of this section within the meaning of the Arbitration and Conciliation Act, 1996 (26 of 1996).

(5)

The procedure for regulating the work of the Tribunal of Arbitration shall be laid down in the Statutes.

45.

Redressal for debarment from examination and disciplinary action against students.?

(1)

Any student or candidate for an examination whose name has been removed from the rolls of the University by an order or resolution of the Vice-Chancellor and who has been debarred from appearing at the examinations of the University for more than one year, may, within ten days of the date of receipt of such order or copy of such resolution by him, appeal to the Board of Governors and the Board of Governors may confirm, modify or reverse the decision of the Vice-Chancellor, as the case may be.

(2)

Any dispute arising out of any disciplinary action taken by the University against a student shall, at the request of such student, be referred to a Tribunal of Arbitration and the provisions of sub-sections (2), (3), (4) and (5) of section 44 shall apply to a reference made under this sub-section.

Chapter VIII

MISCELLANEOUS

46.

Disputes as to constitution of authorities and bodies.?

If any question arises as to whether any person has been duly elected or appointed as, or is entitled to be, a member of any authority or other body of the University, the matter shall be referred to the Board of Governors for decision.

47.

Power of Central Government to make rules in respect of matters relating to Board of Governors.?

(1)

The Central Government may, after previous publication, make rules to carry out the purposes relating to the Board of Governors.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:?

(a)

the manner of filling vacancies among the members of the Board of Governors;

(b)

the disqualifications for being chosen as, and for being a member of the Board of Governors;

(c)

the circumstances in which, and the authority by which, members may be removed;

(d)

the meetings of the Board of Governors and the procedure for conduct of business;

(e)

the travelling and other allowances payable to members of the Board of Governors; and

(f)

the manner in which functions of the Board of Governors may be exercised.

48.

Acts and proceeding not to be invalidated by vacancies, etc.?

No act of the Board of Governors or any other body set up under this Act or the Statutes, shall be invalid merely by reason of?

(a)

any vacancy in, or defect in the constitution thereof; or

(b)

any defect in the election, nomination or appointment of a person acting as a member thereof; or

(c)

any irregularity in its procedure not affecting the merits of the case.

49.

University to be a public authority under Right to Information Act.?

The provisions of Right to Information Act, 2005 (

22 of 2005

) shall apply to the University, as it were a public authority defined in clause (h) of section 2 of that Act.

50.

Protection of action taken in good faith.?

No suit or other legal proceedings shall lie against any officer or other employee of the University for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act or Statutes or Ordinances made thereunder.

51.

Power of Central Government to issue directions.?

(1)

The University shall, in discharge of its functions under this Act, be bound by such directions on questions of policy as the Central Government may give in writing to it from time to time.

(2)

The decision of the Central Government as to whether a question is one of policy or not shall be final.

52.

Residuary provision.?

(1)

The Board of Governors shall have the authority to deal with any matter pertaining to the University and not specifically dealt with in this Act.

(2)

The decision of the Board of Governors on all such matters shall be final.

53.

Laying of rules, Statutes, Ordinances and notifications. ?

(1)

Every rule, Statute or Ordinance made and every notification issued under this Act shall be published in the Official Gazette.

(2)

Every rule, Statute or Ordinance made and every notification issued under this Act, shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule, Statute, Ordinance or notification or both Houses agree that the rule, Statute, Ordinance or notification should not be made, the rule, Statute, Ordinance or notification shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule, Statute, Ordinance or notification.

54.

Power to remove difficulties.?

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions or give such directions not inconsistent with the provisions of this Act, as appears to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of the period of two years from the date of commencement of this Act.

(2)

Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

55.

Transitional provisions.?

Notwithstanding anything contained in this Act and the Statutes made thereunder,?

(a)

the existing Director General of the Gujarat Forensic Sciences University, Gandhinagar shall be appointed by the Central Government as the first Vice-Chancellor of the University for a period of three years and he shall be eligible for re-appointment for a further period of three years;

(b)

till such time the University constitutes such authorities or committees as may be required under the provisions of this Act, the existing committee or Board in the Gujarat Forensic Sciences University, Gandhinagar shall continue to exercise the respective roles or, as the case may be, till the Board of Governors determine;

(c)

the existing Director of Lok Nayak Jayaprakash Narayan National Institute of Criminology and Forensic Sciences, New Delhi shall be appointed as the Campus Director for Delhi campus of the University till a regular Director is appointed by the University;

(d)

the existing Registrar of the Gujarat Forensic Sciences University, Gandhinagar shall be appointed as the first Executive Registrar of the University, or, as the case may be, till the Board of Governors determine.

56.

Repeal of Gujarat Act 17 of 2008.?

(1)

The Gujarat Forensic Sciences University Act, 2008 is hereby repealed.

(2)

Notwithstanding such repeal,?

(a)

all appointments made, orders issued, degrees and other academic distinctions conferred, diplomas and certificates awarded, privileges granted, or other things done under the Gujarat Forensic Sciences University Act, 2008, shall be deemed to have been respectively made, issued, conferred, awarded, granted or done under the corresponding provisions of this Act and, except as otherwise provided by or under this Act or the Statutes, continue in force unless and until they are superseded by any order made under this Act or the Statutes; and

(b)

all the proceedings of selection committee or any other authority, if any, for the appointment or promotion of teachers and other employees that took place before the commencement of this Act and all actions of the concerned authorities in respect of the recommendations of such selection committee or authority, if any, where no orders of appointment on the basis thereof were passed before the commencement of this Act shall, notwithstanding that the procedure for selection has been modified by this Act, be deemed to have been valid but further proceeding in connection with such pending selections shall be taken in accordance with the provisions of this Act and be continued from the stage where they stood immediately before such commencement, except if the concerned authorities take a decision to the contrary.

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